IN THE HIGH COURT FOR THE STATE OF TELANGANA

AT HYDERABAD
(Special Original Jurisdiction)

THURSDAY, THE SECOND DAY OF APRIL
TWO THOUSAND AND TWENTY SIX

PRESENT

THE HONOURABLE SRI JUSTICE LAXMI NARAYANA ALISHETTY

WRIT PETITION NO: 10087 OF 2026

Between:

1. Mr.Ansar Ahmed Bilgrami, S/o.Late Nisar Ahmed Bilgrami, Aged about 72 years,Occ. Business, R/o. H. No. 3-5-121/E/1/6/A/6 (Part) and 3-5-121/E/1/6, Eden Bagh, Ramkote, Hyderabad.
2. Esam Ahmed Bilgrami, S/o.Mr.Ansar Ahmed Bilgrami, Aged about . 42 years,Occ. Business, R/o H.No.. 3-5-121/E/1/6/A/6(Part), Eden Bagh, Ramkote, Hyderabad.

...PETITIONERS

AND

1. The State of Telangana, rep. by its Principal Secretary, (MAUD), Secretariat, Hyderabad.
2. Greater Hyderabad Municipal Corporation, Rep.by its Commissioner Tank Bund,Hyderabad.
3. Assistant City Planner, Greater Hyderabad Municipal Corporation Ramkote, Circle No.35, Khairtabad, Hyderabad
4. The Zonal Commissioner, Greater Hyderabad Municipal Corporation, Ramkote,Circle No.35, Khairtabad, Hyderabad

...RESPONDENTS

Petition under Article 226 of the Constitution of India praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased tot issue an appropriate Writ, Order or Direction, more particularly one in the nature of Writ of Mandamus, declaring the inaction of the respondent No.2 herein in passing orders on the representation dated. 27.1.2026vide Acknowledge Invoice No.

CTZ2026059558 to the 2nd respondent submitted by the petitioner for regularisation of the extra floors constructed in the premises bearing H. No. 3- 5-121/E/1/6/A/6 (Part) and 3-5-121/E/1/6, and H.No.3-5-121/E/1/6/ A/6,Eden Bagh, Ramkote, Hyderabad. inspite of expressing my readiness to pay the penal charges, as being illegal, arbitrary, unjust and unconstitutional and consequently direct the 2nd respondent herein to regularise the extra floors constructed in the above mentioned premises in terms of Se. 455A and 455AA of the GHMC, Act.

I.A. NO: 1 OF 2026

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to direct the 2nd respondent herein to consider and dispose of the representation dated.27-1-2026 vide Acknowledge Invoice No - CTZ2026059558 to the 2nd respondent pending disposal of the main Writ Petition, in the interest of justice.

Counsel for the Petitioners: SRI. SARWATH MEHDI KHAN FOR Ms SHAKEERA BANO,

Counsel for the Respondent No.1: GP FOR MCPL ADMN URBAN DEV
Counsel for the Respondent No. 2 To 4: SRI M. ARUN KUMAR, SC FOR GHMC

The Court made the following: ORDER

IN THE HIGH COURT FOR THE STATE OF TELANGANA AT HYDERABAD

THE HONOURABLE SRI JUSTICE LAXMI NARAYANA ALISHETTY

WRIT PETITION No.10087 of 2026

DATED: 02.04.2026

Between:

Ansar Ahmed BIlgrami and others ...**Petitioners**

AND

The State of Telangana,
Rep. by its Principal Secretary, (MAUD)
Secretariat, Hyderabad and others. ...**Respondents**

ORDER:

This writ petition is filed to declare the inaction of respondent No.2 in passing orders on the representation dated 27.01.2026, *vide* Acknowledgement Invoice No.CTZ2026059558 to respondent No.2 submitted by the petitioner for regularization of the extra floors constructed in the premises bearing H.Nos.3-5-121/E/1/6/A/6 (part) and 3-5-121/E/1/6, and 3-5-121/E/1/6/A/6, Eden Bagh, Ramkote, Hyderabad, in spite of expressing readiness to pay penal charges, as illegal, arbitrary and for consequential relief.

2. Heard Ms.Shakeera Bano, learned Counsel for petitioners and Sri M.Arun Kumar, learned Standing Counsel for respondent Nos.2 to 4.

3. Learned counsel for petitioners submitted that in similar facts and circumstances, this Court disposed of Writ Petition No.6241 of 2026 *vide* order dated 27.02.2026 with a direction to respondent No.2 therein to consider the regularization application of the petitioners therein and to pass appropriate orders strictly in accordance with law by duly giving fair opportunity of hearing to the petitioner and until such time, respondent No.3 therein was directed not to act upon the impugned notice therein. Learned counsel for the petitioner prayed this Court to pass a similar order in the present Writ Petition.

4. Learned Standing Counsel for respondent Nos.2 to 4 did not dispute the same.

5. Accordingly, this Writ Petition is disposed of in terms of order dated 27.02.2026 passed in Writ Petition No.6241 of 2026, with a direction to respondent No.2 to consider the regularization application of the petitioner, dated 27.01.2026, and to pass appropriate orders strictly in accordance with law by duly giving fair opportunity of hearing to petitioners and till such time, respondent Nos.2 to 4 are directed not to take any coercive steps against the subject property. There shall be no order as to costs.

Miscellaneous petitions pending, if any, shall stand closed.

Sd/-MOHD. ISMAIL
DEPUTY REGISTRAR

//TRUE COPY//

SECTION OFFICER

To,

1. The Principal Secretary, State of Telangana, (MAUD), Secretariat, Hyderabad.
2. The Commissioner , Greater Hyderabad Municipal Corporation, Tank Bund,Hyderabad.
3. Assistant City Planner, Greater Hyderabad Municipal Corporation Ramkote, Circle No.35, Khairtabad, Hyderabad
4. The Zonal Commissioner, Greater Hyderabad Municipal Corporation, Ramkote,Circle No.35, Khairtabad, Hyderabad
5. One CC to Ms SHAKEERA BANO, Advocate [OPUC]
6. Two CCs to GP FOR MCPL ADMN URBAN DEV, High Court for the State of Telangana, at Hyderabad [OUT]
7. One CC to SRI M. ARUN KUMAR, SC FOR GHMC, [OPUC]
8. Two CD Copies

Along with a copy of the order dated 27.02.2026 in W.P No.6241 of 2026

DAN/PMK

HIGH COURT

DATED: 02/04/2026

ORDER

WP.No.10087 of 2026



DISPOSING OF THE WRIT PETITION

WITHOUT COSTS

(11) SK 21/4/26

IN THE HIGH COURT FOR THE STATE OF TELANGANA AT HYDERABAD

THE HONOURABLE SRI JUSTICE N.V.SHRAVAN KUMAR

WRIT PETITION No.6241 of 2026
DATE OF ORDER: 27.02.2026

Between:

Numburi Srinivas Rao & 2 Others

...Petitioners

AND

The State of Telangana,
Rep. by its Principal Secretary,
Municipal Administration & Urban Development Department,
Secretariat, Hyderabad & 4 Others

...Respondents

ORDER:

This writ petition is filed to declare the notices dated 10.02.2026 *vide* proceedings No.19-83/UC/CIR-12/LBNZ/GHMC/2026, and the notice to vacate under Section 461-A dated 10.02.2026 *vide* proceedings No.19-83/UC/CIR-12/LBNZ/GHMC/2026 issued by respondent No.3 as illegal, arbitrary, null and void and in violation of the principles of natural justice and the fundamental rights guaranteed to the

petitioners under the Constitution of India, provisions of GHMC Act, 195 and to further declare the show cause notice dated 13.07.2023 and speaking order dated 25.08.2023 as bad in law. A consequential prayer is sought to set aside the impugned notices dated 10.02.2026, show cause notice dated 13.07.2023 and the speaking order dated 25.08.2023 issued by respondent No.3 and further to direct respondent Nos.1 to 3 not to take any coercive steps against petitioners pending regularization application dated 23.02.2026 under Section 455-A read with 455-A of GHMC Act, 2019.

2. Though various grounds are raised in the writ petition, Mr. J.Prabhakar, learned Senior Counsel appearing on behalf of the learned counsel for the petitioners confined his submissions to the extent of disposal of the petitioners' regularization application dated 23.02.2026 pending before the respondents.

3. Learned Senior Counsel for the petitioners further submit that, as and when the respondent No.2 pass appropriate orders on the petitioners' representation / regularization application, the petitioners would abide by the orders passed by respondent No.2 and if there are any deviations, they would accordingly comply the same.

4. Perused the record.

5. Earlier, the petitioners filed W.P.No.5353 of 2026 and the petitioners' counsel sought for withdrawal of the said writ petition granting liberty to the petitioner to seek appropriate remedy as available under law, this Court by an order dated 20.02.2026 dismissed the writ petition as withdrawn granting liberty as prayed for. Subsequently, the petitioners made a representation on 23.02.2026 to respondent Nos.2 and 3 seeking regularization of the residential building constructed at premises bearing H.No.13-19-83, Plot No. 21 Part, Kodandaram Nagar, P & T Colony, Gaddiaannaram Division, Saroornagar, Hyderabad, under Sections 455-A and 455-AA of the GHMC Act, 1955.

6. Heard learned Senior Counsel appearing on behalf of petitioners' counsel on record and learned counsel representing Mr. Srinivasa Rao Pachwa, learned Standing Counsel for GHMC, who takes notice on behalf of respondent Nos.2 and 3.

7. Recording the submissions of learned counsel appearing for petitioners and respondents, without expressing any opinion on the merits of the case, the respondent No.2 is directed to consider the petitioners' regularization application dated 23.02.2026 and after giving a fair opportunity of hearing to the

petitioners, pass appropriate orders strictly in accordance with law. Till such time, the notice dated 10.02.2026 *vide* proceedings No.19-83/UC/CIR-12/LBNZ/GHMC/2026, and the notice to vacate under Section 461-A dated 10.02.2026 *vide* proceedings No.19-83/UC/CIR-12/LBNZ/GHMC/2026 issued by respondent No.3 shall not be acted upon.

8. With the above observations, this writ petition is disposed of. There shall be no order as to costs.

As a sequel thereto, miscellaneous applications if any pending in this petition, shall stand closed.

JUSTICE N.V.SHRAVAN KUMAR

Date: 27.02.2026
Nsk